



Appeal Decision

Site visit made on 22 July 2026

by R J Redford MTCP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 09 September 2026

Appeal Ref: 6007136

Land Adjacent to 9 Windmill Close, Ivinghoe, Buckinghamshire LU7 9EW

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for planning permission.
 - The appeal is made by Martin Hopcroft against Buckinghamshire Council.
 - The application Ref is 25/01494/APP.
 - The development proposed is the erection of a 3 bedroomed house.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. Vale of Aylesbury Local Plan (2021) (LP) Policy BE1, and Ivinghoe Parish Neighbourhood Plan (2018) (NP) Policies HSG1 and ENV2 have been referenced in the evidence. Although not submitted the online versions have been reviewed.
3. The National Planning Policy Framework (the Framework) was updated in August 2026. The main parties have been given an opportunity to comment on this and the revised version has been referred to in this decision.

Background and Main Issue

4. Although the Council have failed to issue a decision, they have submitted a comprehensive Statement of Case including an officer report. The main issues have therefore been determined with review of this and in conjunction with my observations on site.
5. The proposal is in a conservation area and relates to the setting of listed buildings, therefore special regard to sections 66(1) and 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (as amended) (the Act) must be had.
6. The main issue is, therefore, the effect of the proposal on the character and appearance of the local area having special regard to the desirability of preserving the setting as it relates to the special interest of the nearby listed buildings, and the extent to which it would preserve or enhance the character or appearance of the Ivinghoe Conservation Area.

Reasons

7. The appeal site is close to the junction of High Street, Church Road and Station Road (the junction) which is the central focal point of Ivinghoe village, and therefore the Ivinghoe Conservation Area (the CA). The village has a high number of listed

and non-listed buildings, and these converge on the aforementioned junction. Nevertheless, as observed on site and in accordance with the Council, appellant, and previous inspector¹, the most relevant listed buildings, owing to their proximity to the appeal site, are: The Grade I Church of St Marys (The Church), reference 1117874; The Grade II Old Brewery House (The OBH), reference 1160897; and The Grade II Kings Head (The KH), reference 1319240.

8. The Church is a simple cruciform footprint with steeple and porches to the north and south entrances. It originates from around 1230 with various alterations undertaken through the 14th and 15th century and much restored in the late 1800s by G E Street, architect of the London Law Courts, who added the porches. As a parish church it has been the focus of the community since its construction, and its location emphasises its high status within the village. This is borne out by the relationship between the Church's main west door and the junction, as well as the elements of verdant space retained around it which continue to provide a link with Ivinghoe's rural surroundings. The significance of this heritage asset is therefore not only related to its architectural merit and age but also derived from its setting.
9. The CA Area Review (CAAR) recognises that prior to the late 19th century the cottages along Church Road and the Meacher Brewery complex, would have had an enclosing effect on the setting of the Church. But the demolition of the brewery in the 1920s would have reintroduced an element of the spaciousness important to its setting especially in context with the junction and village centre.
10. The OBH was built by the Meacher family who owned the brewery complex which is now largely occupied by the houses along Windmill Lane, and the appeal site. The appellant has confirmed it was most probably constructed in the late 18th century. It is a 3-storey dwelling in a grand classical architectural style, prominently located on the junction and so is a higher order property within the village. Therefore, its significance is in the main related to its architectural aesthetic but with recognition of its social value in terms of its relationship to the brewery which would have been dominant in the village.
11. The KH now used as a child's nurse, is on the opposite side of the junction to the Church, OBH and appeal site. It constitutes a range of bay which follow the corner of the junction with the front door facing Station Road. Elements of the building date to the medieval era with extensions and amendments continuing throughout the centuries. It is more rustic in vernacular to the Church and the OBH, but the mix of traditional construction, historic adaptations, and its social importance as a former inn at the centre of the village characterise this building's significance.
12. The CAAR identifies the significance of the CA is its historic connection to local trade and that its layout has remained relatively unchanged since the medieval period. Specifically, the confluence of roads at the junction, the Church and KH and the space around them forming the historic centre of the village, and the open character created by The Lawn and surrounding fields which retains the connection of the village with the surrounding landscape. This connection is further emphasised by glimpsed views of the villages bucolic setting, such as from the junction across the appeal site².

¹ APP/J0405/W/23/3329511

² As identified on page 24 of the CAAR.

13. The appeal site is located between the Church and the OBH accessible from Windmill Lane. It is mainly laid to grass and gravel and used in association with the OBH. Windmill Lane is an infill development of detached dwellings which were built on the location of the former commercial brewery buildings (demolished in the 1920s). The appeal site is partly enclosed by a wall and hedging and between the junction, appeal site and Church is a small area of hardstanding used for parking, a brick bus stop shelter, and a fenced in substation.
14. The appeal site is the last part of land on Windmill Lane not built on and provides space between the Church, the OBH and the junction. This spaciousness allows the hierarchy of buildings within the central core of the village to be understood. The Church takes primacy and visually draws the eye, with the later and more functional buildings of the KH and the OBH prominently located on either side of the it. In effect the appeal site is not only significant to the setting of these buildings due to proximity but provides a spacious setting to appreciate them in as well as enforces the rural nature of Ivinghoe. This is especially evident when travelling towards the site along High Street and Station Road.
15. Therefore, it is found that the spacious and verdant character of the appeal site has a positive contribution to the Church and the KH as part of the historic core of Ivinghoe and so reinforces the interconnection between village and countryside which is important to the CA.
16. The proposal would constitute a detached dwelling similar in footprint and design to properties along Windmill Lane. It would be set back from the junction, adjacent to the boundary with 9 Windmill Lane, and behind the rear elevation of the OBH.
17. It is recognised that the appeal site was part of the built form of the brewery and so the OBH was surrounded by development when built. However, the demolition of the brewery complex was prior to the listing of the OBH and would have allowed better appreciation of the architectural merits of the OBH. Therefore, although the proposed new dwelling would be within the setting of OBH, the setback location of the proposed new dwelling is found to ensure that enough space would be retained to allow the significance of the building to still be understood. As such the proposal would not affect the significance of the OBH as a heritage asset.
18. The proposal would, however, further reduce the spaciousness surrounding the Church which has already been incrementally eroded by the erection of the Windmill Lane dwellings. The enclosing of this space would have an urbanising effect on the setting of the Church, further narrowing the important visual and physical relationship between it, the village and surrounding countryside. It would also reduce the glimpsed views across the site of the wider landscape which are important to the significance of the CA in terms of visual connection between the historic core of Ivinghoe and its bucolic setting.
19. As the proposed dwelling would align closely with the design, layout and form of Windmill Lane properties it would also result in a further modern intrusion into the historic street pattern and building form important to this part of the CA and the setting of the Church, and, to a lesser extent, due to the proposed set back from the junction, the setting of the KH.
20. It is therefore found that by incursion of a modern form of development into an open space important to the setting of the Church, the KH and the CA, the proposal

would have a harmful impact on the significance of the 2 listed buildings and fail to preserve the character or appearance of the CA.

21. The appellant considers the proposal to be an improvement to the previous scheme refused at appeal³. It is recognised that the proposal before me is of a smaller scale, would retain more trees and with opportunity for increased landscaping, but an improvement does not mean it is automatically acceptable. Further, that the mature trees have a screening effect of views from the Church and immediate churchyard is noted. However, impact on setting is not limited to intervisibility and does not negate the physical encroachment and reduction of spaciousness created by the proposal.
22. The appellant's Heritage Impact Assessment, notes that the Lawn is the landscape element that makes the greatest contribution to the setting of the junction, specifically Station Road. However, this does not mean that the appeal site does not also have a positive contribution to this part of the CA.
23. The proposal would therefore harm the significance of the Church and the KH by failing to preserve their setting as part of their special interest, and would fail to preserve the character and appearance of the CA.
24. Framework policy HE6:4 states that where a development proposal would cause harm the effect on the asset and its significance should be weighed against any public benefits resulting from the proposal.
25. The Council cannot demonstrate a 5-year housing land supply. It has confirmed that for the North and Central areas of Buckinghamshire it can only demonstrate a 3.73-year supply. Accordingly, the main public benefit of the proposal is the creation of a family home in a reasonably accessible village location and thus providing a boost to local housing supply.
26. There would also be social and economic benefits from new residents joining the community and adding to the local economy, as well as some provision of employment via the construction of the proposed new dwelling. There may also be limited environment benefits with biodiversity enhancements secured on site.
27. However, as the proposal is only for a singular dwelling, these benefits are limited by the size. As the proposal would cause harm to the significance of 3 designated heritage assets, including a Grade I listed building, it is not found that the public benefits are sufficient to outweigh this harm, in conflict with the Framework.
28. The proposal would therefore have a harmful effect on the character and appearance of the local area and would represent unjustified harm to 3 designated heritage assets, the Church, the KH, and the CA. It would therefore fail to comply with the Act and the Framework, and LP Policy BE1 and NP Policies HSG1 and ENV2 insofar as they require new development to seek to conserve heritage assets, or that identified harm is outweighed by the public benefits.

Other Matters

29. The appellant's work on OBH converting it back to a residential property from a former youth hostel is noted. However, this does not form part of the proposal before me, which I must consider on its own merits.

³ APP/J0405/W/23/3329511

30. The Council has identified a lack of harm in relation to accessibility, highway safety, parking, landscape impact, living conditions, flooding and drainage, trees, archaeology, and sustainability. However, a lack of harm, by definition, cannot weigh for or against a proposal.
31. It is noted that the appeal site is within the zone of influence of the Chilterns Beechwood Special Area of Conservation (SAC). However, clause 63(1) of Regulation 63 of the Conservation of Habitats and Species Regulations 2017 states that 'a competent authority, before deciding to undertake, or give any consent, permission... must make an appropriate assessment'. As I am dismissing the appeal for other reasons, I am not required to pursue this matter further.
32. Nevertheless, it is recognised that the Council has a mitigation programme for development which is considered to impact the SAC and this is secured by obligation. However, with no executed legal agreement to secure this mitigation it cannot weigh for the proposal in the planning balance.

Planning Balance and Conclusion

33. Framework Policy S3:1.a. sets a presumption in favour of sustainable development, requiring the application of Framework Policy S4 for development proposal within settlements. Policy S4:1 requires that development within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the decision-making policies in the Framework.
34. As identified above the Council cannot demonstrate a 5-year housing land supply, therefore Framework Policy HO7 requires substantial weight to be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs of the community. Substantial weight is also given to the better use of vacant or underutilised land by Framework Policy L2:1.
35. However, Framework Policy HE6:1 places substantial weight on the conservation of heritage assets, irrespective of whether any potential effect amounts to a positive effect, harm, substantial harm, or total loss of its significance. It also highlights the more important the asset the greater the weight should be. As the proposal would harm the significance of a Grade I listed building, the most important of heritage assets, in combination with impacting a Grade II listed building and a conservation area, in this instance, it is found that the adverse effects would not substantially outweigh the benefits of the proposal.
36. For the reasons given above the appeal scheme would conflict with the development plan when read as a whole and there are no sufficiently weighted material considerations, including the Framework, which would indicate a decision otherwise. The appeal is, therefore, dismissed.

RJ Redford

INSPECTOR